

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

SUMMONS

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CHRISTINA BYARD, ROXANNE BYARD, KEVIN
BYARD, KAREEM TUCKER,

Index #

Plaintiffs,

The basis of venue is:
Place of Incident

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DETECTIVE JOHN SIOKAS (SHIELD #2825), POLICE
OFFICER JOHN DOE #1, POLICE OFFICERS JOHN
DOES #2-4 (names and numbers of who is unknown at
present), and other unidentified members of the New York
City Police Department,

Plaintiffs designates Kings
County as the place of trial.

Defendants.

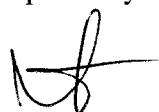
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 30, 2015

Respectfully submitted,



ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiffs
65 Broadway (Suites 813 & 814)
New York, New York 10007
(212) 691-3333

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street New York, New York 10007

POLICE DETECTIVE JOHN SIOKAS (SHIELD #2825)
Narcotics Borough Brooklyn South, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

VERIFIED COMPLAINT

-----X
CHRISTINA BYARD, ROXANNE BYARD, KEVIN
BYARD, KAREEM TUCKER,

Index #

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DETECTIVE JOHN SIOKAS (SHIELD #2825), POLICE
OFFICER JOHN DOE #1, POLICE OFFICERS JOHN
DOES #2-4 (names and numbers of who is unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.

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Christina Byard, Roxanne Byard, Kevin Byard, Kareem Tucker, by her attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiffs was unlawfully arrested by the defendants. Plaintiffs was deprived of her federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiffs, caused the unjustifiable arrest of plaintiffs and malicious prosecution of plaintiffs. Defendants additionally used excessive force in violation of Plaintiffs' constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiffs Christina Byard is a citizen of the United States and a resident of Brooklyn, New York.
3. Plaintiffs Roxanne Byard is a citizen of the United States and a resident of Brooklyn, New York.
4. Plaintiffs Kevin Byard is a citizen of the United States and a resident of Brooklyn, New York.
5. Plaintiffs Kareem Tucker is a citizen of the United States and a resident of Brooklyn, New York.

6. Police Detective John Siokas (Shield #2825) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Detective John Siokas (Shield #2825) is being sued in his individual capacity and official capacity.
8. New York City Police Officer John Doe #1 is and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
9. New York City Police Officer John Does #1 is being sued in their individual capacities and official capacities.
10. New York City Police Officers John Doe #2-4 is and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
11. New York City Police Officers John Does #2-4 is being sued in their individual capacities and official capacities.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiffs in furtherance of his State causes of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
16. The City of New York held a 50(H) hearing examination of the Plaintiffs Christina Byard on April 21, 2015.
17. The City of New York held a 50(H) hearing examination of the Plaintiffs Roxanne Byard, Kevin Byard and Kareem Tucker on April 23, 2015.

STATEMENT OF FACTS

18. Christina Byard is 25 years old. She is the mother of six year old Shamy Dorcius. She previously worked as a cashier for Macy's. She is currently a childcare provider of a one and seven year old.
19. Roxanne Byard is 49 years old.
20. Kevin Byard is 19 years old. He recently graduated from South Brooklyn Community High School. He was previously employed as an intern at Red Hook Recreation Center.
21. Kareem Tucker is 25 years old. He was previously employed at Power Point Construction.
22. On September 6, 2014, at approximately 6 am inside of 428 Columbia Street, Apt. 6C, New York, New York, police officers arrived at the home of Roxanne Byard, and banged loudly on her door. Roxanne realized that the police were using an instrument to knock the door down, and so she approached the door and yelled that she would open it. Despite her response, the police officers broke through the door of her apartment, and entered the home, with guns drawn, searching for illegal drugs. The police were looking for Stanley Dorcius.
23. The police barged into the room where Christina Byard, and her then five year old daughter Shamy Dorcius were sleeping. When Christina asked nicely if the officers would put their guns away because her daughter was in the room, she was told: "Shut up bitch." Christina and her daughter were taken to the living room, and she was handcuffed in front of her.
24. Three police officers entered the room in which Kevin Byard slept. Kevin was searched by a male officer in the bedroom.
25. Kareem Tucker was also in the room with Kevin. Kareem was handcuffed, and while he was on the floor another police officer searched him. Kareem presented his state identification to the police officer to show that he was not a resident of the apartment. The police arrested Kareem regardless.
26. Plaintiffs were all handcuffed in the living room as the police officers searched the apartment for illegal drugs.
27. Plaintiffs were all arrested for possession of illegal drugs despite the fact that their target, Stanley Dorcius was present and apprehended and the police had no information that any other people were involved with drugs.
28. Christina Byard was incarcerated for 28 hours before she was ROR'ed at arraignment. She attended 5 court appearances regarding her arrest before the criminal case against her was dismissed on motion of the prosecutor on January 29, 2015. On account of her arrest, Christina lost about one week of income totaling approximately \$360. At the 76th precinct, cell phones, state identification and \$685 were taken from Christina, which have not since been returned. After the incident, Christina's daughter, Shamy Dorcius, was taken away

from her by ACS for 6 months. During this time Christina attended an additional ten court appearances with ACS in order to regain custody of her daughter. Just after the incident, Shamyia was placed into foster care, and later into the care of her father's family. For the first of the six month battle to reclaim Shamyia, Christina could visit Shamyia for two supervised hours, twice per week. Christina had to complete parenting classes, anger management treatment, therapy and random drug tests in order to continue visiting Shamyia. In the next month, Christina was permitted one 6 hour supervised visit per week. After that, she was permitted 8 hour supervised visits with Shamyia. Then, after six months Shamyia was returned to Christina's custody. Christina is still required to complete 12 additional months of ACS supervision, and is visited once per week by an ACS representative. She also completes weekly drug tests.

29. Roxanne Byard was incarcerated for 41 hours until she was ROR'ed at arraignment. After approximately 5 court appearances, the case against Roxanne was dismissed on motion of the prosecutor on January 16, 2015. During her arrest, Roxanne was hospitalized because of an asthma attack. She was treated and released from St. Barnabas hospital in Manhattan. Roxanne's front door was broken into by the police, and because of the damage she was unable to lock the door after she returned home.
30. Kevin Byard was incarcerated for approximately 41 hours before he was ROR'ed at arraignment. During the arrest, Kevin was unlawfully strip searched. During the search a police officer grabbed Kevin's private parts. Kevin told the police officer that he didn't like how he was being touched, but the police officer ignored Kevin and continued to search him. Kevin was searched 3-4 times in this manner. Kevin had approximately 5 court appearances before the case was dismissed on motion of the prosecutor on January 16, 2015. After the incident, Kevin missed one day of school, and he ended his internship with Red Hook Recreation Center because of this experience.
31. Kareem Tucker was incarcerated for approximately 41 hours before he was ROR'ed at arraignment. Kareem attended approximately 5 court appearances before his case was dismissed on motion of the prosecutor on January 16, 2015. During the arrest, Kareem was unlawfully strip searched. During the search, the police officer touched Kareem's private parts in a manner that is out of the ordinary for 5 minutes.
32. Plaintiffs Roxanne Byard, Kevin Byard and Kareem Tucker filed a notice of claim on January 16, 2015. Plaintiff Christina Byard filed a notice of claim on January 31, 2015.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFFS'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

33. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The individually named defendant who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiffs to be imprisoned without probable cause, maliciously prosecuted, and subjected to excessive force based as well as an unlawful and sexually abusive search in violation of plaintiffs' rights to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST & FALSE IMPRISONMENT

35. Plaintiffs repeat and reallege paragraphs 1 through 34 as if fully set forth herein.
36. The acts and conduct of the defendant constitute false arrest and false imprisonment under the laws of the State of New York. Defendant intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
37. The individually named defendant was at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
38. The City, as the employer of the officer defendants, is responsible for their wrong doing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

39. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
40. The acts and conduct of the defendant constitute malicious prosecution under the Fourth Amendment to the United States Constitution.
41. Defendants commenced and continued a criminal proceeding against plaintiffs.
42. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.
43. The prosecution and criminal proceedings terminated favorably to Plaintiffs Roxanne Byard, Kevin Byard and Kareem Tucker on January 16, 2015 and Plaintiff Christina Byard on January 29, 2015.
44. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiffs' Fourth Amendment rights.
45. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

ASSAULT

46. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.
47. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiffs in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiffs, and that such acts caused apprehension of such contact in the plaintiffs.
48. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
49. The City, as the employer of defendant is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

BATTERY

50. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.
51. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiffs, when they, in a hostile and/or offensive manner struck plaintiffs without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiffs and caused such battery.
52. Defendant were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.
53. The City, as the employer of Defendant is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INVASION OF PRIVACY

54. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.
55. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously subjected plaintiffs to an illegal and sexually abusive search, and in doing so violated plaintiffs's right to privacy.
56. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the NYPD which are therefore responsible for their conduct.
57. The City, as the employer of Defendant is responsible for the wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

SEXUAL ABUSE

58. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.
59. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously touched plaintiffs' breasts and in doing so violated plaintiffs' right to privacy.
60. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the NYPD which are therefore responsible for their conduct.
61. The City, as the employer of Defendant is responsible for the wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

62. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.
63. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

NINTH CAUSE OF ACTION

FAILURE TO INTERVENE

64. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.
65. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other members of the NYPD.
66. Defendants failed to intervene to prevent the unlawful conduct described herein.

67. As a result of the foregoing, plaintiffs was physically assaulted and subjected to an illegal and sexually abusive search.
68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and NYPD, which are therefore responsible for their conduct.
69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

NEGLIGENCE

70. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.
71. Defendants owed a duty of care to plaintiffs.
72. Defendants breached that duty of care by assaulting plaintiffs and subjecting them to an illegal and sexually abusive search.
73. As a direct and proximate cause of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.
74. All of the foregoing occurred without any fault by plaintiffs.
75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

76. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.
77. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs's statutory and common law rights as guaranteed plaintiffs by the laws and Constitution of the State of New York.

78. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.
79. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TWELFTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

80. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.
81. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
82. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to policies, customs and practices wherein New York City Police Officers arrest individuals without probable cause and create false versions of events to justify their actions.
83. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiffs' constitutional rights as described herein. As a result of the failure of defendants City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendants City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
84. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.
85. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.
86. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were unlawfully arrested and prosecuted.
87. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

WHEREFORE, CHRISTINA BYARD, ROXANNE BYARD, KEVIN BYARD, KAREEM TUCKER, plaintiffs, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
July 30, 2015

Respectfully Submitted:

By:



ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiffs
65 Broadway (Suites 813 & 814)
New York, New York 10006
(212) 691-3333

To: City of New York
Corporation Counsel
100 Church Street
New York, NY 10007

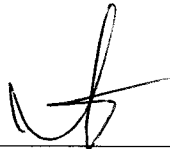
Police Detective John Siokas (Shield #2825)
Narcotics Borough Brooklyn South
Brooklyn, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is that Plaintiffs does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 30, 2015



ILISSA BROWNSTEIN, ESQ.